allowance to assize convicts under sentence of transportation is a little more, viz. two shillings and sixpence, which the sheriff charges to government in his bill of cravings, presented at the expiration of his office. And I believe upon the average price of bread, potatoes, etc., the allowance I have mentioned does not exceed those sums. I presume it may be thought rather incongruous to allow prisoners before trial (on which some of them may be found not guilty) less than is given to those that are convicted.

No fighting should be suffered in a gaol: no quarrelling, or abusive language; nor the frequent occasion of them, gaming. If any one be injured, let him complain to the keeper, who must hear both parties face to face, decide the matter, and punish the aggressor by closer confinement. Faults that deserve more severe animadversion, should be reserved for the cognisance of the magistrates, or an inspector.

Money sent, collected, or bequeathed, should be distributed by the magistrates impartially. Some of it might be laid out in tools, etc., for such debtors as will work.

The mention of legacies reminds me of the need there is of a list of them painted legibly on a board; which should be hung up so as to be read by the prisoners. Very few gaols have such a table: and for want of it many legacies have been entirely lost; and the charitable intention of the testators frustrated. Yet care of legacies is expressly required by the act thirty-second George II. "And it is further enacted that it be given in charge to every grand jury impanelled and sworn, to make inquiry concerning the same."

In the like conspicuous manner should be hung up in every gaol an authentic table of fees, till they all are abolished. This also is expressly required by the same act. Yet in many gaols it is totally disregarded, and they have no such table, and prisoners are exposed to the imposition of keepers.

In the act twenty-fourth George II which prohibits the use of spirituous liquors in prisons or workhouses, it is expressly required, that every gaoler, keeper, master, etc., shall procure one or more copies of the three clauses[1] which contain the

[1] In the prohibiting clauses, a fine of one hundred pounds is laid upon any gaoler, keeper, master, etc., who shall sell, use, lend, or give away any such liquors; or knowingly permit them to be sold, used, etc., in the house; except they be prescribed by a regular physician, surgeon, or apothecary, to be used medicinally.—And a fine of ten pounds to twenty pounds, or any time not exceeding three months' imprisonment, for any person who shall bring such liquors into the house. One moiety of these fines, as well as of that mentioned above, to the informer: the other moiety



several articles of the prohibition, to be printed or fairly written, and hung up in one of the most public places of the prison or workhouse, and renewed as occasion requires, under the penalty of forty shillings for every default.

There should also be a table of the diet or allowance to prisoners: for want of which I have known them defrauded of a considerable part of their food: the whole of which is nowhere more than sufficient. The same table should exhibit the particulars of bedding, straw, etc.

The act for preserving the health of prisoners requires that it be painted on a board, etc.; not merely written or printed on paper, because that is more perishable, and liable to be torn.[1] I have observed that those prisons were the cleanest in which the act was conspicuously hung up. The rules for cleanliness, and orders against garnish, gaming, drunkenness, quarrelling, profaneness and obscenity, should also be visibly exhibited; with the penalties for each of those crimes. The penalties should be fixed by the magistrates, or by law. The table should also show the hours of opening and shutting the several wards; and of attending public worship. Besides setting down these hours in a table, notice should be given of them by a bell, as in the dockyards. I have known prisoners absent from chapel, who said they would have been there, but did not know the service was performing.

It is expressly required by the act thirty-second George II that rules and orders made, signed, and confirmed, as the table of fees, be drawn up for every prison, and hung up conspicuous in it for the inspection of prisoners.[2] Yet in many prisons

of each of the two smaller fines to the prisoners; or, in the workhouse, to the poor.

I have not seen the clauses hung up in any workhouse. I shall in the sequel mark the numerous prisons that have the same defect: I could also have mentioned prisons in which, notwithstanding the act, spirituous liquors are freely used: I could even name gaolers who find ways to evade the act, and do themselves sell such liquors to their prisoners; and I have known the clauses against spirituous liquors hung up till the keepers had licences, after which they were no more seen.—I have seen so much of the bad effects of spirituous liquors, that I am persuaded a total prohibition of them would be greatly conducive to the health and morals of the community.—Dr. McFarlan, in his *Inquiries concerning the Poor*, p. 30, says, "There is no vice that has ruined a greater number of tradesmen, or brought more families to misery, than this habit of drinking spirituous liquors."

[1] I mention this circumstance, that may seem trifling, as I know the disposition of prisoners to destroy the printed copies of the clauses against spirituous liquors.

[2] "Be it also enacted . . . That the judges and justices of assize . . . shall, at all assizes . . . make inquiry whether such table of fees, and rules and